

Tentative Rulings for July 7, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2404637	DAVIES VS AMERICAN HONDA MOTOR CO., INC.	MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF TABITHA DAVIES BY AMERICAN HONDA MOTOR CO., INC.

Tentative Ruling: No tentative ruling. Hearing is continued to 12.03.26 pursuant to CCP 437c(h).

Jury trial is continued to 1.15.27.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2406355	ZENERGY CAPITAL LLC VS PALM SPRINGS CEMETERY DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF ZENERGY CAPITAL LLC BY PALM SPRINGS UNIFIED SCHOOL DISTRICT

Tentative Ruling: A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*) The court disregards any factual assertions raised in the demurrer and reply papers that are not pled. Demurrers for uncertainty will only be sustained where the defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against him. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

Demurrers for uncertainty are to be overruled when addressed to inconsequential matters, the facts are within the knowledge of the defendant or ascertainable in discovery, or not dispositive of one or more causes of action. (*Id.*) Here, the complaint is not so uncertain such that Defendant does not understand the claims. The specific location of the easement can be determined during discovery.

4th Cause of Action Breach of Contract:

Under the Government Claims Act (the "Act"), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity ("government claim") which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity's actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for non-compliance exists. (*Id.*)

The claim must be filed within 6 months of the accrual of the cause of action, or with leave to file a late claim, no later than one year. (Gov. Code, §§ 911.2, 911.4.) If a plaintiff fails to file a government claim within the 6 month period, he or she may apply to the public entity for permission to file a late claim. (Gov. Code, § 911.4.) Such an application must be presented within a reasonable time, and not later than one year after

the accrual of the cause of action. (Gov. Code, § 911.4(b).) If the claim against the public entity is barred, any claims against a public employee for injuries caused within the scope of employment are also barred. (Gov. Code, § 950.2.) Failure to plead compliance with the claims statute subjects the complaint to a demurrer. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Here, there is no allegation of compliance. Plaintiff argues that it is seeking relief other than damages. However, the FAC clearly seeks damages. (FAC ¶52.)

6th Cause of Action – Inverse Condemnation:

The California Constitution requires that just compensation be paid when private property is taken or damaged for public use. (California Constitution, Article 1, § 19; *Marshall v. Department of Water & Power* (1990) 219 Cal.App.3d 1124, 1138.) Inverse condemnation is brought by a property owner who contends that the government has taken or damaged his property. (*Boxer v. City of Beverly Hills* (2016) 246 Cal.App.4th 1212, 1218.) While in eminent domain actions brought by the government already establish a taking, in an inverse condemnation action, the property owner must establish that the public entity has taken or damaged his property, before deciding the issue of just compensation. (*Weiss v. People ex rel. Department of Transportation* (2018) 20 Cal.App.5th 1156, 1166-1167.) There are three types of takings: “(1) the property has been physically invaded in a tangible manner; (2) no physical invasion has occurred, but the property has been physically damaged; or (3) an intangible intrusion onto the property has occurred which has caused no damage to the property but places a burden on the property that is direct, substantial, and peculiar to the property itself.” (*Boxer*, supra, 246 Cal.App.4th at 1218.)

Defendant’s argument is that it is barred by the statute of limitations. A demurrer based on a statute of limitations defense must clearly and affirmatively show that the claim is barred. (*Lockley v. Law Office of Cantrell, Green, Kekich, Cruz & McCort* (2001) 91 Cal.App.4th 875, 881.) “It is not sufficient that the complaint might be barred.” (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 324.)

Inverse condemnation, when it is an action to recover for government acts causing “physical damage to private property” must be commenced within 3 years. (Code Civ. Proc. §338(j).) The cause of action accrues when the damage becomes manifest even if the property owner is unaware of the governmental agency’s involvement in causing the damage. (*Lyles v. State of Calif.* (2007) 153 Cal.App.4th 281, 286.) Here, there are no dates alleged, only the recording date of the easement, 6.27.12. (FAC ¶49.) Without a date of damage of the property, the FAC does not clearly demonstrate that the claim is barred by the statute of limitations.

However, Defendant points out that the FAC admits that the ownership of the property has been conveyed from District to County. (FAC ¶67.) Thus, it is unclear how Defendant District has taken or damaged the property if it no longer owns the property.

Defendant Palm Springs Unified School District Special Demurrer is OVERRULED.

Defendant Palm Springs United School District General Demurrer as to the 4th and 6th Causes of Action is SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 20 days.

Trial Setting Conference remains calendared for 11.18.26.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2406355	ZENERGY CAPITAL LLC VS PALM SPRINGS CEMETERY DISTRICT	DEMURRER ON 1ST AMENDED COMPLAINT FOR FRAUD OF ZENERGY CAPITAL LLC PALM SPRINGS CEMETERY DISTRICT AND KATHLEEN JURASKY DEMURRER TO FIRST AMENDED COMPLAINT

Tentative Ruling: A demurrer must be filed within the time period of an answer. (Code Civ. Pro., § 430.40.) The parties fight over the declaration filed 2/10/26 for an automatic extension. Even assuming arguendo that the declaration is invalid, the court has discretion to consider an untimely demurrer. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750.) The court chooses to hear the demurrer on the merits.

A demurrer tests the legal sufficiency of the pleading, but not the truthfulness of the allegations. (*Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (*Id.*)

Government Claims Act:

Under the Government Claims Act (the “Act”), a plaintiff bringing suit for monetary damages against a public entity or employees must first present a claim to the public entity (“government claim”) which must be acted upon or deemed rejected by the public entity. (Gov. Code §§ 945.4, 950.2, 950.6(a).) It is an element of a cause of action against a public entity. (*Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 374.) The purpose is to provide sufficient information to the public entity to enable it to adequately investigate claims and settle, if appropriate, without the expense of litigation. (*Ibid.*) It is required irrespective of the public entity’s actual knowledge of the circumstances. (*Ibid.*) A plaintiff must allege compliance, or an exception or excuse for not compliance exists. (*Id.*)

The claim must be filed within 6 months of the accrual of the cause of action, or with leave to file a late claim, no later than one year. (Gov. Code, §§ 911.2, 911.4.) If a plaintiff fails to file a government claim within the 6 month period, he or she may apply to the public entity for permission to file a late claim. (Gov. Code, § 911.4.) Such an application must be presented within a reasonable time, and not later than one year after the accrual of the cause of action. (Gov. Code, § 911.4(b).) If the claim against the public entity is barred, any claims against a public employee for injuries caused within the scope of employment are also barred. (Gov. Code, § 950.2.) Failure to plead compliance with the claims statute subjects the complaint to a demurrer. (*State of California v. Superior Court* (2004) 32 Cal.4th 1234, 1239.)

Here, there is no allegation of compliance. Plaintiff solely argues that Defendant waived this by failing to raise this in an earlier demurrer. However, failure to state facts sufficient to constitute a cause of action is not subject to waiver. (Code Civ. Proc. § 430.080(a).) Plaintiff’s sole citation to Code of Civil Procedure section 430.41(b) is inapplicable because by its own terms, it only applies if there was a demurrer previously sustained. There is no prior demurrer.

Governmental Liability:

“Tort claims may not be maintained against a public entity unless they are based on a statute or are required by the federal or state constitutions.” (*Lundeen Coatings Corp. v. Department of Water & Power* (1991) 232 Cal.App.3d 816, 832.) Unless provided by statute, a public entity is not liable for an injury. (Govt. Code § 815(a).) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his or her employment if the act or omission would have given rise to a cause of action against the employee, unless the employee is immune. (*Id.* at § 815.2.) There is no common law tort liability for public entities—only statutory. (*Green Valley Landowners Association v. City of Vallejo* (2015) 241 Cal.App.4th 425, 441-442.) To state a cause of action against a government entity, every fact essential to the existence of statutory liability must be pled with particularity. (See *Searcy v. Hemet Unified School Dist.* (1986) 177 Cal. App. 3d 792, 802.)

1st Cause of Action Conspiracy to Fraudulently Discharge Waste:

Conspiracy is not a cause of action, rather, it is a form of vicarious liability. (*Patrick v. Alacer* (2008) 167 Cal.App.4th 995, 1016 n.11.) A conspiracy only requires an express or tacit agreement to commit a civil wrong or tort; that renders all participants liable for damages. (*Navarrete v. Meyer* (2015) 237 Cal.App.4th 1276, 1293.) As long as two or more persons agree to the wrongful act, they are held liable whether or not each individual actually committed the tort. (*Ibid.*)

To the extent that it is conspiracy to commit fraud, Plaintiff fails to plead any facts demonstrating fraud. The elements of fraud are (1) misrepresentation of a material fact (consisting of a false representation, concealment or non-disclosure); (2) knowledge of the falsity (i.e., scienter); (3) intent to deceive and induce reliance; (4) justifiable and actual reliance on the misrepresentation; and (5) resulting damage. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 173.) Fraud actions are subject to strict requirements of particularity in pleading. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) A plaintiff must allege what was said, by whom, in what manner (i.e. oral or in writing), when, and, in the case of a corporate defendant, under what authority to bind the corporation. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.4th 780, 793.) The claim is not pled with any specificity. Furthermore, the claim is subject to a three year statute of limitations upon discovery. (Code Civ. Proc. § 338(d).) Plaintiff admits that testing showed groundwater contamination between 1991 and 1993. (FAC ¶23.)

To the extent that it is harm to the property, the statute of limitations is three years. (Code Civ. Proc. § 338(b).) For the same reasons, the claim is also barred under harm to the property.

2nd Cause of Action Fraud & Unjust Enrichment:

The claim is based on Cemetery District fraudulent inducing Cathedral City to purchase the property without properly closing the landfill. (FAC ¶32.) However, as RJN, Ex. A. shows, Plaintiff is not a party to the sale. Thus, it is unclear how Cemetery District committed fraud against Plaintiff.

To the extent the claim is based on unjust enrichment, there is no cause of action for unjust enrichment. (*City of Oakland v. Oakland Raiders* (2022) 83 Cal.App.5th 458, 477.) “Whether termed unjust enrichment, quasi-contract, or quantum meruit, the equitable remedy of restitution when unjust enrichment has occurred ‘is an obligation (not

a true contract [citation]) created by the law without regard to the intention of the parties' ” (*Ibid.*)

8th Cause of Action Inverse Condemnation:

The California Constitution requires that just compensation be paid when private property is taken or damaged for public use. (California Constitution, Article 1, § 19; *Marshall v. Department of Water & Power* (1990) 219 Cal.App.3d 1124, 1138.) Inverse condemnation is brought by a property owner who contends that the government has taken or damaged his property. (*Boxer v. City of Beverly Hills* (2016) 246 Cal.App.4th 1212, 1218.) While in eminent domain actions brought by the government already establish a taking, in an inverse condemnation action, the property owner must establish that the public entity has taken or damaged his property, before deciding the issue of just compensation. (*Weiss v. People ex rel. Department of Transportation* (2018) 20 Cal.App.5th 1156, 1166-1167.) There are three types of takings: “(1) the property has been physically invaded in a tangible manner; (2) no physical invasion has occurred, but the property has been physically damaged; or (3) an intangible intrusion onto the property has occurred which has caused no damage to the property but places a burden on the property that is direct, substantial, and peculiar to the property itself.” (*Boxer*, supra, 246 Cal.App.4th at 1218.)

The elements of inverse condemnation are: (1) a public entity; (2) has taken or damaged the plaintiff’s property; and (3) for a public use. (*Shehyn v. Ventura County Public Works Agency* (2025) 108 Cal.App.5th 1254, 1259. The damage to the real property must be “ ‘substantially caused by an inherent risk presented by the deliberate design, construction, or maintenance of [a] public improvement.’ ” (*Ibid.*)

Here, the FAC is based on the allegation that the Cemetery District uses irrigation water and caused excess rainwater and irrigation water to flow to the east parcel. (FAC ¶¶74-76.) Plaintiff fails to allege how this constitutes a public improvement project, substantially participated in the operation of one, or was for public use.

10th Cause of Action Equitable Indemnity:

“Equitable indemnity ‘applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party.’ ” (*United Services Auto. Ass’n v. Alaska Ins. Co.* (2001) 94 Cal.App.4th 638, 644-645.) “Equitable indemnity principles govern the allocation of loss or damages among multiple tortfeasors whose liability for the underlying injury is joint and several. Such principles are designed, generally, to do equity among defendants who are legally responsible for an indivisible injury by providing a basis on which liability for damage will be borne by each joint tortfeasor ‘in direct proportion to [its] respective fault.’ ” (*Expressions at Rancho Niguel Assn. v. Ahmanson Development* (2001) 86 Cal.App.4th 1135, 1139-1140, citing *American Motorcycle Assn. v. Superior Court* (1978) 20 Cal.3d 578, 597-598.)

Here, there is no allegation that Plaintiff paid a debt or actually suffered a loss for which Cemetery District is liable for payment. Plaintiff alleges that only that if it is required to make “outlays” as a result of RWQCB order, Defendants should reimburse Plaintiff. (FAC ¶¶82.) That is premature as there is no actual payment Plaintiff has made.

11th Cause of Action Negligence:

Plaintiff dismissed this claim of 4/17/26.

Defendant's Request for Judicial Notice of Exhibit A and Exhibit B is GRANTED.

Defendant's Demurrer as to the 1st, 2nd, 8th and 10th Causes of Action SUSTAINED with leave to amend. Plaintiff to file an amended complaint within 20 days.

Defendant's Demurrer as to the 11th Cause of Action is MOOT.

Trial Setting Conference remains calendared for 11.18.26.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2503361	PATTERSON VS ANIMAL RESCUE BY RICK AND EVA INC.	PLAINTIFF HAILEY PATTERSON'S MOTION TO DEEM ADMISSIONS ADMITTED, SET ONE AGAINST DEFENDANT ANIMAL RESCUE BY RICK AND EVA INC.

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2503361	PATTERSON VS ANIMAL RESCUE BY RICK AND EVA INC.	PLAINTIFF HAILEY PATTERSON'S MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES, SET THREE; AND REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST DEFENDANT ANIMAL RESCUE BY RICK AND EVA INC.

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2503361	PATTERSON VS ANIMAL RESCUE BY RICK AND EVA INC.	PLAINTIFF HAILEY PATTERSON'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE; AND REQUEST FOR ORDER AWARDING MONETARY SANCTIONS AGAINST DEFENDANT ANIMAL RESCUE BY RICK AND EVA INC.

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2505991	ANTHONY VS RPK DEVELOPMENT CORPORATION	MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF MELVIN ANTHONY, JR. BY 760 TOWING, LLC

Tentative Ruling: Discretionary relief from a default pursuant to 473(b) requires that the motion must be filed within six months of the clerk’s entry of default and also within a “reasonable time” after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.)

Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.) The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must also file with the notice of motion a copy of the answer, motion or other pleading proposed to be filed in the action. (C.C.P. §473.5(b).)

The court may be asked to grant equitable relief from a default judgment whenever the “extrinsic fraud or mistake” is discovered; the only time requirement is that a party is expected to proceed diligently to seek relief. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) Relief is generally available only for “extrinsic fraud or mistake,” but it does not require fraud or mistake in the strict sense—the terms “tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing.” (*In re Marriage of Park* (1980) 27 Cal.3d 337, 342.) “Extrinsic fraud occurs when a party is deprived of the opportunity to present a claim or defense to the court as a result of being kept in ignorance or in some other manner being fraudulently prevented by the opposing party from fully participating in the proceeding,” while “[e]xtrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended....” (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229.) But “extrinsic fraud and extrinsic mistake are unavailable when a party’s own negligence allows the fraud or mistake to occur.” (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.) And the fraud or mistake must be extrinsic rather than intrinsic, in the sense that the party must have been denied the opportunity to be heard. If the fraud or mistake goes to the merits of the action, or occurred at trial, it is deemed “intrinsic” and not ground for relief. (*In re Marriage of Thorne & Raccina* (2012) 203 Cal.App.4th 492, 505.) “[I]f a party has been given notice of an action and has not been prevented from participating therein,” relief must be denied because “[h]e has had an opportunity to present his case to the court and to protect himself from mistake or from any fraud attempted by his adversary.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472.)

Before analysis of Defendant 760 Towing, LLC’s motion, the court addresses the proof of service on file for Defendant. The proof of service filed with the court on 9.10.25 is deficient. The Proof of Service of Summons form POS-010 in section 3(a) shows that the party served was “760 Towing, LLC “Manager”. In section 3(b) the section is left blank

as to whom was served or their relationship to the party named in section 3(a). Additionally, the server was a Marissa Brooks, who indicated she was not a registered California process server, so no rebuttable presumption under CCP 647 applies. However, in Plaintiff's opposition to the motion to set aside default, attached as Exhibit B, is an unfiled Proof of Service form POS-010 indicating that 760 Towing, LLC was served via their "account/owner Brianna Madrigal" on the same date, 9.10.25, later in the day than Ms. Brooks' contact. Without addressing the issue of Plaintiff acting as witness to service when Ms. Brooks was present, the court deems that there is a sufficient basis to deem that service was properly completed by RSO Deputy Huggins on 9.10.26.

The Request for Entry of Default was entered on 10.17.25 and the proof of service shows that the request for entry of default was mailed to Defendant 760 Towing LLC on 10.15.25. Defendant's motion to set aside was filed on 5.01.26, outside of the 180 day time permitted under CCP 473.5 and 473(b). Additionally, Defendant does not claim lack of actual notice. As pointed out by Plaintiff, the Declaration submitted by Oscar Baez who identifies himself as the owner of the residence, concedes that Ms. Brianna Arteaga Madrigal is the registered agent for the LLC. Lastly, the court finds no basis under an equitable relief claim to set aside the default, as there has been no showing of any type of extrinsic fraud or mistake that denied Defendant the opportunity to be heard.

On Plaintiff's Objections the court DECLINES to RULE.

Motion to Set Aside Default of Defendant 760 Towing, LLC DENIED.

Case Management Conference confirmed for 7.29.26.